

COMONN TERMS & CONDITIONS (T & C'S)

By instructing the Company to supply the Services, the Customer agrees to accept and be bound by the Company's trading terms and conditions. All and any business undertaken by the Company shall be subject to the Company's trading terms and conditions of contract which are as follows:

Definitions

1. "Company" shall mean COMONN Pty Ltd (ACN 687 152 610), its employees, servants, agents, subsidiaries, associated entities, successor and/or assigns.

"Customer" shall mean the shipper (consignor), the receiver (consignee), the owner of the Goods, the bailor of the Goods or the person for whom any of the Services are arranged and/or performed.

"Goods" shall mean the chattels, articles or things tendered for by the Customer for the Services and shall include the container(s), unit load device(s) or other packaging containing the same and any other pallet(s) delivered with the same to the Company or Subcontractor by the Customer or for or on its behalf.

"Government Authority" means, without limitation, all Government Departments with responsibility for the import and export of goods, the collection of revenue on the import and export of goods and the transport of those goods to include, without limitation, Australian Customs Service (ACS), Australian Quarantine Inspection Service (AQIS) and Australian Taxation Office (ATO).

"Services" shall mean the carriage, transport, movement, packing, handling, storage/warehousing, and/or any other service arranged or performed by the Company, pursuant to, or ancillary to, this contract with the Customer.

"Dangerous goods" shall mean such of the Goods as shall be, or become, in fact or at law noxious, dangerous, hazardous, explosive, radioactive, inflammable or capable by their nature of causing damage or injury to other goods, persons, plants or animals or to any thing including that in which the Goods are carried, handled or stored.

"Valuables" shall mean bullion, coins, precious stones, jewellery, antiques, or works of art. "Perishable goods" shall mean such of the Goods as shall be in fact or law liable to deteriorate in quality and/or value and shall include, but not be limited to, fruits, vegetables, dairy products, meat, etc.

"Subcontractor" shall mean and include any person, firm or company (other than the Company) that arranges or performs the Services (or a part thereof).

"Carriage by Air Convention" – shall mean applicable legislation incorporating the Warsaw Convention (1929), the Warsaw Convention as Amended at the Hague (1955) and Warsaw supplementary protocols such as the "Guadalajara Convention", Protocol of Montreal No. 4 or the Montreal Convention (1999).

"ACL" means the Australian Consumer Law ("ACL") being Schedule 2 of the Australian Competition & Consumer Act 2010 ("CCA")

Words importing the singular include the plural and vice versa and words importing any gender include all genders and words importing a person include firm, corporation or other entity where appropriate.

Not a Common Carrier/Entire Agreement

2. The Company is not a common carrier and accepts no liability as such. Services are arranged, undertaken and/or performed by the Company subject only to these conditions of contract which constitute the entire agreement between the Company and the Customer. No person has the authority of the Company to waive or vary these conditions and the Company reserves the right to refuse at its sole discretion the arranging, undertaking or performing of any of the Services for any customer whether before, during or after the Service has commenced and further reserves the right to open and/or inspect all Goods at its discretion and at the Customer's expense.

Contracts with Third Parties

3. The Customer hereby employs and authorises the Company to contract either in its own name or in the Customer's name with any Subcontractor, and authorises any Subcontractor to contract the services of any other Subcontractor, for the performance of any of the Services agreed to be arranged or performed pursuant to, or ancillary to, this contract. Any such contract may be made on any terms of contract whatsoever used by the Subcontractor with whom the Company or Subcontractor may contract for such Service(s) including in every case terms which may limit or exclude liability in respect of the Service. In any event, the Company shall be entitled to the full benefits of all privileges, right and immunities available to any Subcontractor under such contract or compulsorily applicable law in respect of the Services provided. Any Subcontractor's terms are available from the Company on request.

Prevention of Suit/Circular Indemnity and Himalaya

4. The Customer undertakes that no claim or allegation shall be made against the Company's employees, servants, agents, Subcontractors (including the Subcontractors' employees and agents) or other person who may be vicariously liable for the acts or omissions of such parties which imposes or attempts to impose upon any such party any liability whatsoever in connection with the Goods whether or not arising out of negligence on the part of such party. If any such claim or allegation should nevertheless be made, the Customer will indemnify the Company against all consequences thereof. Without prejudice to the foregoing, every such party shall have the benefit of all provisions herein benefiting the Company as if such provisions were expressly for its benefit, and in entering into this contract, the Company, to the extent of these provisions, does so not only on its own behalf, but also as agent and trustee for such parties.

Warranties by the Customer

5. The Customer warrants:

- (a) That it is the owner of the Goods or otherwise has the authority of the owner or person having an interest in the Goods or any part thereof to sign the Company's Letter of Instruction, other contractual document or otherwise accept and consign the goods upon and subject to these conditions.
- (b) That the person releasing or delivering the Goods to the Company is authorised to sign the Company's Letter of Instruction, other contractual document and/or otherwise accept and agree to these conditions on the Customer's behalf.
- (c) The adequacy of packing, stowing and suitability of the Goods for the Services contracted and accuracy of all markings and brandings of the Goods, descriptions, values and other particulars furnished to the

Company for the carriage, customs, consular and any other purposes and undertakes to indemnify the Company against all loss, damage, expenses and fines arising from any inadequacy, unsuitability, inaccuracy or omission in this respect.

(d) That the performance of any Service provided or arranged by the Company to effect the instructions of the Customer in respect of the Goods shall not be in breach of any law

Exclusion and Limitation of Liability

6. (a) Subject to the terms and conditions in this contract and mandatory applicable statute, convention or law, the Company shall not be liable for any loss or damage suffered by the Customer or any other person, howsoever caused or arising, whether:

(i) Arising from an authorised or unauthorised act OR contemplated or un contemplated act under this contract;

(ii) Caused by the negligence of the Company's servants, employees, agents and/or Subcontractors;

(iii) Caused by a breach or fundamental breach of contract and/or breach of bailment;

(iv) Resulting from, or attributable to, any quotation, statement, representation or information, oral or written, made or given on behalf of the Company or its servants, agents, employees or Contractors as to the classification of, liability for, amount, scale or rate of customs duty, excise duty or other impost or tax applicable to any goods subject of any Service;

(v) Occasioned by the Company complying with any requirement or directive of any Government Authority in relation to the Goods;

(vi) Occasioned by examination of the Goods by any Government Authority;

(vii) Occasioned by treatment of the Goods by any Government Authority (including without limitation, any fumigation or decontamination or other treatment by AQIS).

(b) In all cases where liability cannot be excluded by this agreement because of mandatory applicable statute, convention or law, the liability of the Company is limited to the lesser of AUD\$100.00 or the value of the Goods the subject of the agreement at the time the Goods were received by the Company.

(c) In all cases where liability cannot be limited or excluded by this agreement because of mandatory applicable statute, convention or law including any legislation making compulsorily applicable to the Company and/or a Subcontractor carrier such as a Carriage by Air Convention, the Hague Rules, the Hague-Visby Rules, or the Hamburg Rules, or adaptations thereof, [such as the Australian Carriage of Goods by Sea Act (1991), the New Zealand Maritime Transport Act (1994), or the Carriage of Goods by Sea Act of the United States (1936) – all as amended from time to time], the provisions of the applicable statute, convention or law shall be deemed incorporated herein and any rights, immunities and/or defences therein shall be available to the Company. For the purpose of determining the extent of the Company's liability for loss of or damage to the Goods under this agreement or any mandatory applicable legislation, the value of the Goods lost or damaged is agreed to be the invoice cost value.

(d) In all cases where liability cannot be excluded or limited by this agreement for breach of any condition or warranty in respect of the Services pursuant to statute or otherwise, the liability of the Company is limited to any one or more of the following:

(i) The supplying of the Services again;

(OR)

(ii) The payment of the cost of having the Services supplied again.

(e) Without limiting the generality of the foregoing, the parties shall in no circumstances be liable for loss or damage other than directly to or from the Goods, including indirect or consequential loss or damage arising from the Services performed in respect of the Goods including loss of market, loss of profit or loss of contracts howsoever caused.

(f) Further without limiting the generality of the foregoing, the Company shall not be liable for any loss or damage suffered by the Customer or any other person as a result of a failure or inability of the Company or Subcontractor to collect or receive C.O.D. payments from any consignees or their agents whether caused by the negligence of the Company's servants, agents, employees, Subcontractors or otherwise.

(g) No declaration of value will be made for the purpose of extending liability and the Goods will be forwarded or dealt with at the Customer's or owner's risk unless express written instructions to the contrary are given by the Customer and accepted in writing by the Company and extra charge paid if required by the Company.

(h) It is hereby agreed between the Customer and the Company that their right to compensation for any claim for loss or damage will only be maintained provided the following is strictly adhered to:

(i) Any claim by the Customer for loss or damage must be lodged in writing to the Company within 7 business days of delivery of the Goods or the date Services are completed, whichever date occurs first;

(ii) Any claim by the Customer for loss/non-delivery of Goods must be notified in writing to the Company within 7 business days from the date the Goods should have been delivered or the Services should have been completed, whichever date occurs first;

(iii) Any right to any legal remedy of the Company or the Customer against the other shall be extinguished unless legal proceedings are brought against the other within 12 months from the date of this contract or the date the Services were completed or Goods delivered, or the date the Services should have been completed or the Goods should have been delivered, whichever date occurs first.

Negotiation of Extension of Responsibility/Liability/Warranty/Insurance

7. (a) Upon negotiation with the Customer in writing, the Company may agree to greater responsibility and liability than set out in the sub-paragraphs (a) to (i) of the above provision upon payment of additional charges by the Customer as required. Applicable rates for greater responsibility and liability are subject of discussion and negotiation between the parties.

(b) Should the Customer not choose nor the parties agree to the Company taking greater responsibility and liability for the Services for additional charge pursuant to subparagraph (a) above, the parties agree that the Company provides a lower cost service on the premise that it has the right to exclude or limit liability and/or seek indemnity as provided for in this Agreement.

(c) Additionally or alternatively, the Customer may choose two different types of cover options in respect of loss or damage to the Goods:

(i) A conditional warranty provided directly by Subcontractors Aramex and Couriers Please in respect of shipments using their services and subject to their terms;

(OR)

(ii) A conditional warranty provided by the Company and subject to the Company's warranty terms and conditions ("WTC") which if applicable are supplementary terms to this agreement;

(iii) Where the cover in (i) above is arranged by the Company solely as agent on behalf of the Customer with one or other of the above mentioned Subcontractors subject to the Subcontractor's terms and conditions.

(d) Depending on the level of responsibility and liability or warranty cover agreed or arranged as between the Customer and the Company pursuant to sub-paragraphs (a) and/or (c) above, the Customer may need to

consider seeking its own insurance cover for loss or damage it may incur that is not fully indemnified by the Company or warranties pursuant to subparagraphs (a) and/or (c) above. No insurance will be arranged or effected by the Company on the Customer's behalf.

Loading and Unloading on and from Transportation Vehicle/Warehousing

8. (a) The Customer shall be responsible for the cost of, and arranging for, the loading and unloading of the Goods on and from the relevant transportation vehicle.

(b) In the event that there is a delay in the loading or unloading of the Goods by reason other than the default of the Company or Subcontractor, the Customer shall be liable for the Company's expenses incurred by reason of the delay, including demurrage costs as notified by the Company orally or in writing from time to time or available upon request.

(c) The Customer shall provide adequate and suitable facilities and equipment for loading and unloading the Goods from the relevant transportation vehicle. The Customer also warrants that the Goods will be suitable for carriage in such vehicle.

(d) The Customer has the right to inspect the transportation vehicle before the loading of the Goods. Absent any inspection and complaint, the transportation vehicle will be deemed to be in adequate and suitable condition for the carriage of the Goods. Thereafter, the Customer shall have no rights against the Company with respect to the condition of the vehicle and the Company will have no liability in respect of any loss or damage caused by the inadequate or unsound condition of the vehicle.

(e) The Goods may at any time be stored or otherwise held at any place or at any time be removed from any place at which they may be stored or otherwise held to any other place to be stored or otherwise held at the sole discretion of the Company. In every case, whether storage is incidental or the primary Service provided by the Company, it will be provided at the Customer's risk and expense as a primary charge(s) or a charge(s) incidental to or in connection with the carriage of the Goods or any Service hereunder.

Customer's Indemnity

9. (a) The Customer shall indemnify the Company in respect of any claim, loss, damage, payment, fine, expense, duty, tax, impost, outlay, cost or other liability reasonably incurred by the Company:

(i) Whether arising directly or indirectly from any Service arranged or performed by the Company and/or

(iii) As a result of any breach of the terms, conditions or warranties in this contract by the Customer.

(b) Without limiting the generality of the foregoing, the Customer shall remain responsible to the Company for all charges (C.O.D. or otherwise) paid by the Company to any of its agents, Subcontractors or any other party or authority;

(c) The Customer shall indemnify the Company in respect of any loss or damage arising from any inherent defect, quality or vice of the Goods.

Quotations

10. Quotations for the Services are made on an immediate acceptance basis and are subject to withdrawal or revision without notice at the Company's discretion. Charges may be referred and prices quoted or displayed on the Company's website for information. These are estimates only. These may change depending on any additional service or charges/fees incurred as will be advised by the Company to the Customer and will be payable by the Customer. Goods will be reweighed/remeasured to determine the chargeable weight.

If this weight is more than that amount originally charged to the Customer, the Customer will be recharged based on the correct weight for which the Customer will be liable.

Authority for Payment of Expenses/Duties/Inspection and/or Release of Goods/Information

11. The Customer authorises the Company in effecting the Services, but with no obligation on the part of the Company, to:

- (a) Pay any duties, taxes, imposts, outlays, costs or charges in respect of the Goods and/or Services and
- (b) Allow inspection and/or release of the Goods or any information and/or documents of the Customer, the Goods, the Services or relating thereto as required by government authorities, and the Customer shall indemnify the Company in respect of any disbursement, expense, cost, loss, fine or damage reasonably incurred by the Company and releases the Company from any liability in connection therewith.

Responsibility for Fees/Charges

12. (a) The Customer shall pay the Company for all fees rendered and any charges it reasonably incurs in respect of the Services performed. This includes the payment of fees/charges which the Company is advised or agrees will be paid by a third party which then fails to so pay. Such fees/charges shall be deemed fully earned as soon as the Goods are loaded and dispatched from the Customer's premises, otherwise delivered by the Customer to the Company or Subcontractor or on receipt of the Company's invoice whichever occurs first and shall be immediately payable and non-refundable.

(b) The Customer agrees that it shall not defer or withhold payment or deduct any amount from the account of the Company by reason of any claim it alleges against the Company.

(c) The Customer agrees to the following incidental additional costs being charged pursuant to the applicable payment method (via either Credit card, Paypal or Credit Account) from the time the event which gives rise to the costs referred below occurs:

(i) Redelivery charges will apply where an attempt to deliver fails due to the receiver being unavailable to sign for the item(s) if required. The applicable charges: Redelivery: 50% of charge based on requoting from the Local Depot to the delivery address based on the dimensions, weight. Pick-up from the depot, or a collection point (Hubbed) is free.

(ii) Futile collection charges will apply for futile collection attempts where freight either unavailable, unpackaged or unlabeled. The applicable charges are: \$50.

(iii) Incorrect item declaration charges will apply if the carrier declares the item specifics to be greater than stated in the booking. These charges will be based on the charged weight (whichever is greater out of the dead weight and cubic weight) being requoted as the dead weight and the balance calculated. An additional administration fee of \$45.50 will be applied for all under declared and recalculated charges. In addition to the above recalculation of under declared consignments, a \$11.50 (including gst) operator fee.

(iv) If freight is under/mis-declared during the booking process, additional fees for manual handling may be charged if your freight is not compatible with our carriers sortation systems. Examples of this would be: oversized freight, items with a dead and/or cubic weight over 30kg that are not on a pallet or skid, fragile items such as jars of food, bottles of wine etc, Poorly packaged items, and unusually shaped items including tubes and flat pack freight. Manual handling of: TNT/FEDEX \$17.91 incl gst. Allied Express \$33.75 incl gst. per item may apply. Please note: Our quoting calculator will include the manual handling charges to the quote total if freight is declared correctly at the time of the booking.

(v) An additional fee of \$23.75 per 15 minutes to the Company in respect of any delays in excess of 5 minutes for couriers in loading or unloading occurring other than from the fault of the Company or Subcontractor.

(vi) Return to sender fees are based on the original consignment details being calculated in a reversed delivery route.

(viii) Manual consignment fee: \$20 will be charged if our supplied electronic consignment note (emailed after booking) is not secured to your freight at the time of collection.

(ix) A cancellation fee of \$5.00 is applicable if the booking is cancelled within 48 hours of booking, \$15.00 thereafter.

(x) A fee of \$43 (including gst) per consignment note for each request to defer the delivery date beyond the standard transit date. This fee can be charged more than once per consignment and is in addition to any other applicable surcharge or fee relating to this shipment, including the existing redelivery/futile fee for every failed attempt.

(xi) Storage fee: Day 1 to Day 2 no storage fee will be applied for first 2 days (Day 1 is the next business day after we receive the shipment at the destination depot). Days 3 Onwards: a storage fee of \$55 (including gst) per consignment, per day. These fees are in addition to any other applicable surcharge or fee in relation to this consignment.

Routes/Procedures/Method

13. If the Company is instructed by the Customer and agrees to use a particular method or type of Service, the Company shall give due consideration to the method or type designated but shall at all times have the right to choose or vary such method or type of Service or route and procedure adopted in respect of the Service performed.

Lien – Security Agreement - Personal Properties Security Act

14. The Company shall have a particular and general lien on the Goods of the Customer and any documents relating thereto for all sums payable by the Customer to the Company. The Customer agrees that these terms and conditions constitute a security agreement for the purpose of the Personal Properties Security Act (2009) (“PPSA”) and create a security interest in all Goods and documents relating thereto of the Customer to the extent that the Company and Customer agree by way of this agreement that the Company has the right to:

(a) Exercise a general lien over all Goods and documents of the Customer in respect of any moneys owed by the Customer to the Company and

(b) Sell the Goods or a portion thereof and direct the proceeds of sale to payment to the Company of moneys owed by the Customer to the Company and remit any balance remaining (if such exists) to the Customer; provided that the Company will notify the Customer and all other relevant persons of its intention to sell the goods in accordance with the requirements of mandatorily applicable legislation. If no such legislation applies, the Company will exercise its right to sell the goods or a portion thereof after a period of 7 days from the date which the Company notifies the Customer that it is exercising its rights of sale.

Registration/Personal Properties Security Act

15. (a) The Customer agrees to:

(i) Sign any documents or provide further documents or information required by the Company to register a financing statement or financing change statement in respect of a security interest with the Personal Property Securities Register, register any other documents required by the PPSA or correct any such document(s).

- (ii) Indemnify the Company for all expenses incurred in attending to the steps outlined in (i) above and releasing any interests from the Register.
- (iii) Not register a financing change statement in respect of a security interest without prior written consent by the Company.
- (iv) Not register, nor permit to be registered, a financing statement or a financing change statement in relation to the Goods in favour of a third party without the prior written consent of the Company.
- (b) The Company and Customer agree that sections 96, 117 and 125 of the PPSA do not apply to the security agreement created by these terms and conditions.
- (c) The Customer hereby waives its rights to receive notices or statements under sections 95, 118, 121(4), 123, 130, 132(3)(d), 132(4), 135 and 157 of the PPSA.
- (d) The Customer waives its rights as a grantor and/or a debtor under sections 142 and 143 of the PPSA.
- (e) The Customer agrees to ratify unconditionally any actions taken by the Company pursuant to registration related requirements under the PPSA and as referred in clause 15a) above.

Valuables, Dangerous goods

16. (a)

- (i) Except as agreed in writing, the Company will not accept Valuables or Dangerous goods for Services arranged or performed by the Company. Should the Customer nevertheless deliver any such goods to the Company or cause the Company or Subcontractors to handle or deal with any such goods otherwise than as agreed in writing, the Customer (not the Company) shall be liable for any loss, damage or cost thereto or consequent thereon whether direct, indirect or consequential and howsoever caused and the Customer shall indemnify the Company from and against all penalties, taxes, duties, claims, demands, damages, costs and expenses arising in connection therewith.
- (ii) Any such goods may be destroyed in the sole and absolute discretion of the Company or any other person in whose custody they may be at the relevant time. In the event that the goods are destroyed or otherwise dealt with as aforesaid, the Company shall bear no liability and the Customer shall indemnify the Company from and against all costs and expenses with respect thereto.
- (b) The Customer undertakes that any of the goods referred to in (a) above (including their covering, packaging, containers and other carriage devices) shall be distinctly marked having regard to their nature. The Customer further undertakes that the Goods are packed in a manner adequate to withstand the ordinary risks of any Service having regard to their nature and in compliance with all laws and regulations which may be applicable with respect to any Service. The Customer shall indemnify the Company against all claims, losses, damages or expenses arising in consequence of any breach of this provision.
- (c) The Customer's compliance with (b) above in no way reduces or limits those rights afforded to the Company under (a) of this clause.

Delivery/Completion

- 17. (a) The Company is authorised to deliver the Goods to the consignee or its agent at the address nominated to the Company by either the Customer, the consignor, the consignee or their agents and it is expressly agreed that the Company shall be deemed to have delivered the Goods in accordance with this contract if it or relevant Subcontractor obtains a receipt, signed delivery docket for the Goods, signature on its consignment note or contemporaneous record verifying the identity from any person at that address
- (b) If the nominated place of delivery shall be unattended or if delivery cannot otherwise be effected, the

Company in its sole discretion may at its option either deposit the Goods at the nominated place or store the Goods at the risk and expense of the Customer, both of which will be deemed to be delivery of the Goods under this Contract.

(c) Dates and time specified or requested for completion of carriage or any other Service are estimates only and the Company shall not be liable for failure to complete carriage or any other Service on such date(s) or time(s).

Sale and Disposal of Goods

18. (a) The Company and its Subcontractors shall be entitled at the cost and expense of the Customer, subject to any compliance with any applicable law, to sell or dispose of:

(i) Goods which in the opinion of the Company or Subcontractor cannot be delivered by reason of the Goods being insufficiently or incorrectly addressed or by reason of the Goods not being collected or accepted by the Consignee or for any other reason, and

(ii) Any Perishable goods which in the opinion of the Company or the Subcontractor appear to be deteriorating, if the Customer fails to adequately instruct the Company with respect thereto or fails to pay any costs and expenses necessary to implement the Customer's instructions.

(iii) Goods considered abandoned pursuant to this agreement.

(b) If the Goods are sold pursuant to Clause (a) above, the Company can use the proceeds of sale to discharge any fees and charges owed by the Customer, including the costs of sale. Any balance of any proceeds remaining following such discharge will be remitted to the Customer.

Regulation Compliance

19. The Customer shall exercise all reasonable care and comply with all applicable laws, Government regulations/directions and industry standards including those relating to the packing, carriage, storage, customs clearance, delivery, inspection or other Services in respect of the Goods, and shall provide such information and documents as may be necessary to exercise such care and comply with such laws, regulations and standards. The Company shall not be liable to the Customer or any other party for loss or expense due to the Customer's failure to comply with this provision and the Customer will indemnify the Company for any expense, damage or liability incurred by the Company in so complying.

Law and Jurisdiction

20. (a) Any dispute arising under this Contract shall be governed by the laws of New South Wales and shall be determined exclusively by the courts of New South Wales.

(b) A reference to any law includes a statutory modification, substitution or re-enactment of it.

Representations

21. Where the Company has notified the Customer or its agent of the application of these terms and conditions to the Services and the Customer instructs the Company to supply the Services or the Customer otherwise accepts these terms and conditions, the Customer agrees that it did not rely on any representation, promise, warranty or condition of the Company or its Subcontractor not expressly made (in writing) part of this contract.

Severance & Waiver

22. It is hereby agreed that if any provision or part of any provision of this contract is unenforceable, such unenforceability shall not affect the application of any other part of such provision or any other provision hereof. Further, should the Company elect not to exercise any of its rights under this contract, under any other contract/agreement or under law, such election shall not constitute a waiver of any rights relating to any other or subsequent breach by the Customer.

Inconsistency & Priority

23. (a) To the extent of any inconsistency of enforceable terms or a part thereof herein, these terms will prevail over any other terms issued by the Company or Customer.

(b) The use of the Customer's own form is no derogation to these terms and conditions.

Trade Practices

24. (a) These terms and conditions of contract do not affect the Customer's rights pursuant to the ACL if the Customer is a "Consumer" or "Small Business" and this agreement with the Customer is a "Consumer Contract" or "Small Business Contract" – all quoted terms as defined under the ACL. To the extent that any term or a part thereof is rendered inapplicable or void by application of the ACL or any other legislation, it shall be rendered inapplicable or void only to the extent required to give effect to that legislation but not further.

(b) If the Customer is a "Consumer" or "Small Business" and this agreement is a "Consumer Contract" or "Small Business Contract" as defined under the ACL, the parties agree that:

(i) The prevention of claims and indemnity referred in Clause 4 above as against the Company's servants, agents, subcontractors and/or vicariously liable persons will not apply;

(ii) The time-bars in Clauses 6(h)(i) and (ii) will not apply.

(iii) The Company's right to limit or exclude liability in this Agreement is reasonable and not "unfair" in circumstances where prior to the provision of the Services, the parties agree on the allocation of costs, risk and liability where:

1. The Company has given the Customer a reasonable opportunity to request that the Company take a higher level of risk and liability at a higher cost;

2. The Customer chooses and agrees to a lower cost for a lower level of risk and liability from the Company; and

3. Such practice is not otherwise "unfair" as defined under the ACL.

(iv) the Customer's indemnity referred under Clause 9(a)(i) above will not apply to the extent that the claim, loss, damage, payment, fine, expense, duty, tax, impost, outlay, cost or other liability incurred by the Company resulted from the negligence, recklessness or wilful act of the Company, its servants, agents or Subcontractors or is otherwise unreasonable or unreasonably incurred.

(v) The exclusion of rights of the Customer in Clause 8(d) will not apply.

(vi) Clause 8(e) shall be read down not to include the Customer's risk

(vii) Clause (c) below will not apply.

(c) Unless written notification to the contrary is given by the Customer to the Company at or prior to entering into this agreement, the Customer expressly warrants and represents that all or any Services to be supplied by the Company and acquired by the Customer pursuant to this agreement are so supplied and acquired for the purposes of a business, trade, profession or occupation carried on or engaged in by the Customer.

(d) If the carriage of Goods involves an ultimate destination or stop in a country other than the country of departure, a Carriage by Air Convention may be applicable and may govern and in most cases limit the liability of the Carrier in respect of loss, damage or delay to cargo, unless a higher value is declared in advance by the Customer and a supplementary charge paid if required.

Reasonable Care/Force Majeure

25. Where the Company is unable to carry out any obligation under the contract or any loss or damage is caused to the Goods or otherwise due to any circumstance, matter or thing beyond its reasonable control (“force majeure”) or its exercise of reasonable care, the Company shall be excused and released from such obligations or liability to the extent of such prevention, restriction or interference so caused.

Privacy Policy

26. The Company’s Privacy Policy is set out in this paragraph and paragraphs 27 to 31 herein. The Company is an online courier service. The Company values the relationships with its Customer(s) and the other users of this website. The Company recognizes that its Customer(s) may be concerned about its collection, use, and disclosure of their personally identifiable information that the Company may collect when its Customer(s) use the Website. Accordingly, the Company has implemented this Privacy Policy to inform the Customer(s) of the information that it collects from the Customer(s), how it collects this information, and what the Company does with the information after it is collected. If the Customer has any questions or comments regarding this Privacy Policy, it should contact the Company at admin@comonn.com.au.

Company’s Commitment to Online Security

27. The Customer’s personal information is treated with the greatest of care. Sensitive payment information such as credit card details are NEVER stored on the Internet with the Company’s system. Once the Customer types in its information, it is sent instantly, encrypted, directly to the Company’s order processing system. The Company employs the latest encryption technology in all areas of the site which require the Customer to provide payment information. This is done to protect the Customer from unauthorized use of the information it is sending to the Company’s server. This website is registered with site identification authorities to enable the Customer’s browser to confirm its security identity before any transmission is sent. With this technology, the identity of this site is automatically confirmed behind the scenes prior to the transmission of any sensitive information requested to complete an online order and ensures that the Customer’s data reaches its intended target or the Customer’s browser notifies it that the potential receiving site looks suspicious and should be avoided. Physical, electronic and managerial procedures have been employed to safeguard the security and integrity of personal information. The Company’s website encrypts sensitive information wherever the Company requests it. The Company employs a third party (HackerSafe) to monitor the security of its web servers to alert it to any weaknesses before hackers find them.

Personal Information that the Company May Collect Online

28. The Company collects personal information online, including names, postal and e-mail addresses, phone

numbers and billing information. The Company may also collect business information from sole proprietorships that apply for membership and for program participation, some of which could constitute personal information, as well as personal information from individuals acting solely in their business capacity.

How the Company Uses Personal Information Collected Online

29. The Company will use the Customer's personal information only for the primary purposes of processing its order, delivering its freight and to communicate effectively with the Customer with respect to its order and its delivery. This communication includes; but is not limited to: emailing the Customer tax invoices, dispatch and tracking information, returns and exchange authorisations, etc. The Company will also use your personal information for secondary purposes which are directly related to the primary purpose for which it was collected and which the Customer would reasonably expect the information to be used in the ordinary course of the Company's business. These secondary uses include; but are not limited to: the sale of freight products and services, payments processing, collection and facilitation, issuing invoices, receipts and other transactional documentation, and documents relating to promotion and marketing. As a condition of sale, the Company reserves the right to email the Customer special offer promotions that the Company believes will be of interest to the Customer. The Customer may, once it has placed its order, advise the Company that the Customer is not interested in these offers and the Company will subsequently not send these offers to the Customer. Any such request, should be sent to admin@comonn.com.au. In any event, the Customer may, at any time, unsubscribe from any special offer promotions that the Company sends the Customer, and Customer's unsubscribe request will be actioned immediately. The Company's research may lead to the publication of aggregate demographical data but will not result in the reporting or publication of any personal information provided to the Company.

How the Customer's Information May Be Shared

30. The Company will never sell or rent the Customer's personal information. The Company may, in accordance with the specific purposes listed above, disclose your personal information to:

1. The Company's employees;
2. Financial institutions and third-party payments processors;
3. Freight companies;
4. Auditors and professional services firms;
5. The Australian Taxation Office; and
6. Anyone the Customer authorises the Company to disclose it to.

The Company works with a number of third parties in carrying on its business and it may disclose your personal information to these third parties to facilitate the delivery of products and services to the Customer in connection with its business operations. This includes the provision of freight delivery services and administrative and operational services provided to the Company in connection with the Company's business including financial institutions, IT service providers and payments processors and collectors. Other than as listed above, we will only disclose the Customer's personal information without the Customer's consent under the following circumstances:

1. Where release is required by law (for example, a subpoena) or regulation or is requested by a government agency;

2. Where the Company's records indicate a company or an individual may be engaged in fraudulent activity or other deceptive practices or unlawful activity that a governmental agency should be made aware of;
3. To relevant authorities, where the Customer's communication suggests possible harm to others.

Computer Tracking, Cookies, Changes and Complaints

31. This website is not set up to track, collect or distribute personal information not entered by visitors. The Company's site logs do generate certain kinds of non-identifying site usage data, such as the number of hits and visits to our sites. This information is used for internal purposes by technical support staff to provide better services to the public and may also be provided to others, but again, the statistics contain no personal information and cannot be used to gather such information.

Changes to this Privacy Policy, Conditions of Use and Notices - This Privacy Policy and our Terms of Use may change over time and the use of information which the Company gathers now is subject to these Notices and Terms as modified. If the Customer visits our Website, its visit and any dispute over privacy is subject to this Notice and the Company's Legal Notices, including the application of the laws of Queensland, Australia.

If the Customer believes that the Company has breached the Australian Privacy Principles, it may complain by sending an email with the subject: "Privacy Complaint" to admin@comonn.com.au and providing the Company with the details of the Customer's complaint. The Company will contact the Customer to discuss its complaint and work with the Customer to resolve the complaint.

